

Govind v. Uttar Pradesh Power Corporation Ltd.

Allahabad High Court · Division Bench · 11 February 2020 · Writ-C No. 5011 of 2020 · **Writ disposed; relegated to Clause 6.14; one-month stay of recovery.**

HEADNOTE

A consumer who accepts electricity-dues liability and seeks only an installment facility must apply to the Executive Engineer under Clause 6.14 of the Electricity Supply Code, 2005. The High Court disposed of the writ with a direction that the Executive Engineer consider such an application in accordance with law, as far as possible within one month of presentation of a certified copy, and stayed coercive action on the recovery certificate for that period.

FACTUAL SUMMARY

Recovery proceedings were initiated against the petitioner, Govind, for electricity dues of Rs. 1,95,839. A recovery certificate dated 24 November 2019 was the instrument of recovery. Before the Allahabad High Court he did not dispute the demand and submitted that he accepted the entire liability and was ready to pay if some installments were fixed. The respondents were Uttar Pradesh Power Corporation Ltd. and three others.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment facility for electricity dues

HOLDING

Where the consumer accepts the entire electricity-dues liability and seeks only an installment facility, Clause 6.14 of the Electricity Supply Code, 2005 makes the Executive Engineer the appropriate authority to consider that claim. If the consumer applies under Clause 6.14, the Executive Engineer is to pass an appropriate order in accordance with law, as far as possible within one month of presentation of a certified copy of the High Court order; coercive recovery may be stayed for that one-month window. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 Petitioner accepted the Rs. 1,95,839 dues in full and sought only installments; the Court relegated him to an application before the Executive Engineer under Clause 6.14, with a one-month stay of coercive action on the recovery certificate. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER INSTALLMENTS SHOULD BE GRANTED AND ON WHAT TERMS

Left to the Executive Engineer on a Clause 6.14 application, to be decided in accordance with law. ¶ 1